

Emily explicitly states that I had “just learned of the order” and had never been served with her motion.

C. Interim Hearing and Double Standard on Evidence

6. August 28, 2025 – Interim hearing; refusal to view exculpatory photos.

- At an interim hearing on or about August 28, 2025, the court considered whether to continue or modify the ex parte suspension.
- I attempted to present photographs from the July 29 exchange showing Lincoln comfortable and uninjured. Judge McNeill stated on the record that she would not look at my photographs.
- In contrast, the court accepted, at face value, untested hearsay that my son allegedly made concerning statements to a neighbor—without that neighbor testifying under oath or subject to cross-examination.
- The court expressed concern based on that hearsay, but refused to consider my first-hand, objective images. This unequal treatment of the parties’ evidence is consistent with the pattern documented in my Motion to Disqualify.

D. Off-Record Handling of HealthWest Evaluation (Ex Parte Communications)

7. Order to obtain HealthWest evaluation, followed by chambers-only instructions.

- After the August 28 hearing, Judge McNeill ordered me to obtain a psychological assessment from HealthWest.
- The judge’s secretary then emailed me, instructing that the completed HealthWest evaluation should be sent directly to chambers via email, rather than filed with the clerk.
- I complied and emailed the report around September 5, 2025, as directed.

8. Consequences of off-record submission.

Because of this instruction:

- The HealthWest evaluation was never entered on the official register of actions.